

## Arif Ali Khan v. State of U.P. And 2 Others

High Court of Judicature at Allahabad · Division Bench · 7 March 2025 · 2025:AHC:33484-DB · Writ-C No. 4136 of 2025 · **Writ disposed of; petitioner directed to object under Clause 6.5.**

### HEADNOTE

A consumer seeking restraint of coercive action on an Executive Engineer's order must first file an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ court will not decide that order on merits.

### FACTUAL SUMMARY

Arif Ali Khan filed a writ petition under Article 226 of the Constitution seeking a direction that the respondents not take coercive action against him pursuant to an order dated 26 December 2024 passed by the Executive Engineer, Electricity Distribution Khand Second, Dakhinanchal Vidyut Vitran Nigam Ltd., Mainpuri. Counsel for the parties were heard on that limited prayer.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

#### HOLDING

A writ petitioner seeking a direction against coercive action on an Executive Engineer's order is to file an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if filed within one week, the Executive Engineer shall grant a hearing and pass a reasoned order in accordance with law within four weeks. ¶ 3-4

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — MERITS OF THE 26.12.2024 ORDER AND WHETHER COERCIVE ACTION SHOULD BE RESTRAINED

The Court neither examined the Executive Engineer's order nor granted or refused a stay of coercive steps. ¶ 2-4